

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF KOLESNIKOVA AND OTHERS v. RUSSIA

(Applications nos. 54250/18 and 9 others –
see appended list)

JUDGMENT

STRASBOURG

28 September 2023

This judgment is final but it may be subject to editorial revision.



In the case of Kolesnikova and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 7 September 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the torture or inhuman or degrading treatment. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 3 OF THE CONVENTION

7. The applicants complained principally of the torture or inhuman or degrading treatment. They relied, expressly or in substance, on Article 3 of the Convention.

8. The Court has found in *Bouyid v. Belgium* ([GC], no. 23380/09, §§ 81-90 and 114-23, ECHR 2015), that presumptions of fact was in favour of applicants claiming to be victims of a violation of Article 3 of the Convention, if they demonstrate that the alleged ill-treatment was inflicted when they were under the control of the police or a similar authority. Moreover, in the context of detainees, the Court has emphasised that persons in custody are in a vulnerable position and that the authorities are under a duty to protect their physical well-being and that any recourse to physical force which has not been made strictly necessary by the applicants' own conduct diminishes human dignity and is in principle an infringement of the right set forth in Article 3 of the Convention (see *Sheydayev v. Russia*, no. 65859/01, § 59, 7 December 2006). The burden of proof rests on the Government to demonstrate that the use of force, which resulted in the applicants' injuries, was not excessive (see, for example, *Dzwonkowski v. Poland*, no. 46702/99, § 51, 12 April 2007, and compare with *Kursish and Others v. Russia* [Committee], nos. 62003/08 and 5 others, § 84, 5 July 2022).

9. Furthermore, in the cases of *Lyapin v. Russia,* no. 46956/09, §§ 128-40, 24 July 2014, and *Samesov v. Russia,* no. 57269/14, §§ 54-63, 20 November 2018, as well as in *Kuchta and Mętel v. Poland*, no. 76813/16, § 88, 2 September 2021, the Court has already found, in particular, that the authorities' refusal to institute a fully-fledged criminal investigation into the credible allegations of ill-treatment, as well as the lack of assessment of the necessity and proportionality of the use of lawful force by the police were indicative of the State's failure to comply with its procedural obligation under Article 3 of the Convention.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility (including taking into account the three-month extension introduced by decision of the President of the Court in 2020 as a consequence of the lockdown imposed in France on account of the COVID-19 pandemic (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022)) and merits of these complaints. The Court therefore finds these complaints admissible and observes that there has been a violation of the substantive and procedural limbs of Article 3 of the Convention in respect of all the applicants.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. In application no. 54903/18 the applicant submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Korneyeva v. Russia*, no. 72051/17, §§ 34 and 65, 8 October 2019; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018; *Karelin v. Russia*, no. 926/08, § 84, 20 September 2016; and *Kasparov v. Russia,* no. 53659/07, § 69, 11 October 2016.

V. REMANINING COMPLAINTS

12. Some applicants also submitted complaints under Article 13 of the Convention. Having examined all the material before it, the Court concludes that there is no need to examine these complaints separately in view of its findings under Article 3 of the Convention (see *Aleksandr Andreyev v. Russia*, no. 2281/06, § 71, 23 February 2016, and *Leonid Petrov v. Russia*, no. 52783/08, § 86, 11 October 2016).

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, for similar situations, *Zagaynov and Others v. Russia* [Committee], nos. 5666/07 and 4 others, 15 June 2021, and *Dauberkov and Others v. Russia* [Committee], nos. 60844/11 and 2 others, § 64, 22 March 2022), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to the facts that took place before 16 September 2022;

3. *Declares* the applicants' complaints about torture or inhuman and degrading treatment at the hands of State officials, and other complaints raised under the well-established case-law of the Court (see appended table) admissible, and *finds* that it is not necessary to examine separately the applicants' complaints under Article 13 of the Convention;

4. *Holds* that there has been a breach of both the substantive and procedural limbs of Article 3 of the Convention concerning the torture or inhuman or degrading treatment in respect of the applicants;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised the under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 28 September 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Branko Lubarda
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 3 of the Convention (torture or inhuman or degrading treatment)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	54250/18 02/11/2018	**Tatyana Yevgenyevna KOLESNIKOVA** 1988	Toreyeva Svetlana Anatolyevna Moscow	At 11 p.m. on 01/06/2017 the applicant together with her friends was stopped by four traffic police officers in Yoshkar-Ola for a check. Following a verbal disagreement, one of the officers threw the applicant on the pavement, handcuffed, and beat her on the torso, arms, and legs. Then she was taken to police station no. 2 in Yoshkar-Ola where an officer kicked her on the left thigh. On 03/06/2017 officers at the police station twisted the applicant's arm to make her take off her shoes; the	Forensic medical act no. 873 of 03/06/2017 by the Mari El Forensic Bureau: bloodstains and abrasions on the right shoulder and forearm, abrasions on the left thigh and the right leg - all likely caused by a hard blunt object within 1-3 days prior to the examination. Medical examination act no. 283 of 04/06/2017 by the Yoshkar-Ola Medical Clinic no. 1: chest injury, sprain of the right ankle.	On 06/06/2017 complaint to the police / on 30/07/2017 first refusal to open a criminal case for the lack of corpus delicti; last refusal -on 14/08/2017.	On 21/03/2018 the Yoshkar-Ola Town Court of the Mari El Republic rejected the applicant's complaint against the last refusal / On 03/05/2018 the Supreme Court of the Mari El Republic upheld this decision.	On 22/01/2018 the applicant was convicted of use of violence against a public official on duty in relation to the incident on 03/06/2017 at the police station / Conviction entered into force on 05/03/2018.		26,000

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				applicant resisted, bit the officer's hand, and threw her shoe at him. Then the officers pressed on applicant's neck and hit her face.						
2.	54903/18 31/10/2018	**Aleksandr Andreyevich VINOGRADOV** 1982	Petryakov Sergey Ivanovich Kazan	(i) Ill-treatment At about 8:30 p.m. on 09/12/2016 during a police check of the applicant's vehicle in Bugry, Leningrad Region, five patrol officers sprayed tear gas through a cracked-opened window into the applicant's car forcing him to step out. Then he was pushed to the ground, and hit in the kidney area; his hands were handcuffed behind the back. An officer applied a martial art blow to the applicant's torso causing him to fall. Then the applicant was taken to the 87th police station in the Vsevolzhsk District	Hospital discharge record of 09/12/2016 – 19/12/2016 / Trauma Unit of the Toksovskaya District Hospital: fracture of the 6th,7th and 8th ribs on the right side. Medical Examination Act of 17/10/2017 by the Vsevolzhskoye Forensics Bureau: closed fractures of the 6th, 7th and 8th ribs on the right side with displacement of bone fragments, caused by blunt force and shortly before [the applicant's] admission to the hospital on 09/12/2016.	Between 9 and 19/12/2016 the applicant complained to the police in the Leningrad Region/ Between 23/01/2017 and 26/02/2019 - nine refusals to open a criminal case; the investigators found that the use of force was justified as the applicant had refused to comply with the orders of the police officers.	On 01/02/2019 the Vsevolzhskiy Town Court in the Leningrad Region dismissed the applicant's complaint against the refusal of 31/01/2018 as the impugned decision had been overruled by the investigators' superiors.	On 07/03/2017 the Vsevolzhskiy Town Court convicted the applicant of an offence of breaching the public order aggravated by the failure to comply with lawful demands of an official, committed on 09/12/2016 / On 19/04/2017 the Leningrad Regional Court quashed the administrative conviction. On 07/05/2018 the Krasnogvardeyskiy District Court in St Petersburg convicted the applicant of: (i)	Art. 5 (1) - unlawful detention - no recourse to escort procedure was necessary on 05/05/2018; nothing in his case indicates that it was not possible to draw a record of administrative offence on the spot, at the place of the protest action on 05/05/2018; Art. 6 (1) - unfair trial in administrative offence proceedings – the applicant's administrative cases were examined in his absence by the first-instance court on 07/05/2018;	26,000

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				and a couple of hours later to the Toksovskaya District Hospital where he was diagnosed with a closed fracture of the 6,7 and 8th ribs on the right side. (ii) Administrative-offence proceedings against the applicant On 05/05/2018 the applicant participated in an anticorruption protest in St Petersburg. He was detained between 5 p.m. on 05/05/2018 and 1 a.m. on 06/05/2018 in a police station. He was charged with (i) breaching the rules of public gathering and (ii) failure to comply with a lawful demand of a police officer. He was informed that the examination of his cases would take place on 07/05/2018 at the Krasnogvardeyskiy				breaching the rules of public gathering and (ii) failure to comply with a lawful demand of a police officer / On 05/06/2018 the St Petersburg City Court upheld both judgments.	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings. Art. 11 (1) – restrictive measures in respect of organisers and participants of public events - by preventing the applicant from participating in a peaceful protest action against corruption and convicting him in administrative offence proceedings the authorities caused a disproportionate interference with his right to freedom of assembly; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - The	

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				District Court in St Petersburg and that he was under the obligation to appear for hearing that day. On 07/05/2018 at the court the applicant was informed that there was no information/case file concerning either of his cases. His visit was duly registered in the court's records. On 07/05/2018 the court examined both of his cases in his absence and fined him. On 05/06/2018 the St Petersburg City Court dismissed the applicant's complaint against the two judgments of 07/05/2018.					applicant was convicted of two administrative offences arising from his participation in a single protest action, thus being punished twice in connection with one event for one and the same set of actions.	
3.	29418/19 21/05/2019	**Sergey Anatolyevich KHROMENKOV** 1987	Andreyev Ashot Aleksandrovich Syktyvkar	At 1.30 a.m. on 09/08/2018 the applicant was arrested in Syktyvkar by police officers of the Syktyvkar Police Department for filming on his mobile telephone a	Ambulance certificate of 09/08/2018 by the Syktyvkar ambulance station (ambulance team was called to the police station on 09/08/2018): forehead wound,	On 09/08/2018 complaint to the Syktyvkar police / Refusals to open a criminal case on 20/08/2018, 20/11/2018,	On 26/10/2018, 14/12/2018, 12/03/2019 and 15/05/2019 the Syktyvkar Town Court of the Komi Republic dismissed the	On 09/08/2018 the Syktyvkar Town Court of the Komi Republic convicted the applicant under Article 20.1 § 2 of CAO for minor		26,000

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				brutal arrest by them of an unknown person. The officers chased him, subjected him to beatings, pushed him to the ground. handcuffed him and took him to a police station.	medium stage of alcohol intoxication. Forensic medical report no. 2/3549-18/4000-18 by the Komi Republic Forensic Bureau (undated): multiple abrasions on the applicant's head and left elbow, head wound. The injuries could have been caused by a hard blunt object with subsequent falling on a hard surface withing the period specified by the applicant.	11/01/2019 and 09/04/2019.	applicant's complaints as the respective refusals had been overruled by the investigators' superiors.	hooliganism and disobedience of lawful orders of the police.		
4.	33041/19 11/06/2019	**Roman Vladimirovich STASYUK** 1994	Sholokhov Igor Nikolayevich Kazan	On 17/07/2018 the applicant was summoned by a police officer to the Budenovsk Traffic Police Department where the officer, allegedly in reply to the applicant's disobedience, handcuffed him and subjected him to multiple blows to the head and abdomen. As a	Examination report no. 13 of 19/07/2018 by the Stavropol Regional Forensic Bureau: head injuries, dissection of the eyebrow, abrasions and bruises, sharp pain in the lower back, vomiting and dizziness; the injuries were inflicted	On 18/07/2018 complaint to the Budyonovsk inter-district investigative department/Refusals to open a criminal case on 17/08/2018 and 19/09/2018.	On 05/12/2018 the appeal contesting the last refusal was rejected by the Budenovskiy Town Court in the Stavropol Region/Upheld on 19/02/2019 by the Stavropol Regional Court.	On 18/10/2018 the Budyonovskiy Town Court acquitted the applicant of the charges of disobeying a police officer.		26,000

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				result, the applicant was taken to a hospital.	within the last three days. Expert medical report no. 428 of 19/07/2018 by the same bureau: confirmed the injuries and the mechanism of their infliction. Photos of the applicant's injuries.					
5.	58985/19 01/11/2019	**Aleksey Aleksandrovich SUKHANOV** 1971	Sadovskaya Olga Aleksandrovna Nizhniy Novgorod	On 25/01/2017 bailiffs in the building of the Tverskoy District Court in Moscow hit the applicant's head against a safe and then handcuffed him allegedly in response to the applicant's refusal to comply with their orders.	Ambulance report of 25/01/2017 by the Sklifosovskiy Institute of Emergency Medicine in Moscow: closed head injury, brain concussion, soft tissue abrasions to the head, contusions to the extremities. Forensic medical report no. 3502m/3226 of 11/04/2017 by the Moscow Forensic Bureau: abrasions in the wrist area caused by a hard object, abrasion of the left parietal region, subcutaneous	On 17/02/2017 complaint to the Tverskoy Investigative Committee in Moscow / on 01/03/2017 the complaint was joined to a complaint of another alleged victim of the bailiffs' ill-treatment on 25/01/2017 /Between 02/03/2017 and 09/05/2019 eight refusals to open a criminal case, all overruled by the investigator's superiors. In each	On 24/12/2018, 04/06/2019 and 28/05/2019 the Tverskoy District Court in Moscow refused to examine the complaints contesting the refusals as the impugned decisions had been overruled by the investigator's superiors.	By a decision of 22/02/2017 a justice of the peace of court circuit no. 423 of the Tverskoy District in Moscow sentenced the applicant to a fine for obstructing the lawful activity of an official in relation to the incident of 25/01/2017/On 18/04/2017 the decision was upheld by the Tverskoy District Court in Moscow.		26 000

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					haematoma of the left temporal region, which could have been caused by an impact of a blunt hard object.	refusal the ill-treatment allegations were left unexamined.				
6.	9611/20 20/01/2020	**Mikhail Yuryevich GNUSAREV** 1973	Kiryanov Aleksandr Vladimirovich Taganrog	On 28/09/2017 the applicant was stopped by the Taganrog Traffic police when pulling into his garage and refused to undergo alcohol testing. Police officer Dzh. applied a restraint hold twisting the applicant's arm and dragged him to a police car. The applicant was taken to a police station, and later on the same day - to the emergency room, where he was diagnosed with an injury of the right shoulder joint which necessitated a surgery.	Medical emergency record no. 7109 of 28/09/2017 by Rostov-on-Don municipal hospital no.1: dislocation of the right shoulder joint, complaints of having been subjected to ill-treatment by police officers. Medical cards of the applicant's outpatient and inpatient treatment by the same hospital: surgery performed on 03/11/2017. Forensic medical examination no. 103 of 26/01/2018 by the Taganrog Forensic Bureau: blunt closed trauma of the right upper limb: traumatic swelling of the right shoulder	On 26/10/2017 complaint to the Taganrog Investigative Committee / Between 25/11/2017 and 29/03/2019 eight refusals to open a criminal case. It was established that the damage caused to the applicant by the officer had not been proportionate to the circumstances of the administrative arrest. At the same time, the damage to the applicant's health had not been intentional, but negligent. It could have resulted from the applicant's resistance to the actions of the	On 07/10/2019 the Taganrog Town Court dismissed the applicant's appeal against the last refusal / on 14/11/2019 that decision was upheld by the Rostov Regional Court.	On 29/09/2017 the Taganrog Town Court in the Rostov Region found the applicant guilty of failure to comply with lawful demands of a police officer and imposed an administrative fine on him. On 21/12/2017 the Justice of the Peace of the Taganrog Judicial Circuit of the Rostov Region found the applicant guilty of the failure to comply with the demand to be tested for alcohol, fined him and lifted his driving		26,000

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					joint, tendon rupture, shoulder ligament rupture, dislocation of shoulder bone, scapular fracture, trauma aggravated by development of hemarthrosis and tendovaginitis, degenerative-dystrophic changes in the shoulder bone; surgery performed on 03/11/2017; trauma classified as medium-severe causing the applicant long-term health damage; could have been caused by abrupt taking of the hand behind the back and raising the hand up, in the period shortly preceding the first examination, possibly on 28/09/2017. Forensic medical examination no. 192 of 24/03/2019 the Taganrog Forensic Bureau: confirmed the	police officers. In their conclusions the investigators relied on the service inquiry into the actions of Dzh. and Sh., which had not found any violations of the applicant's rights in the officers' actions.		license for one year and six months.		

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					conclusions of the previous forensic medical examination.					
7.	19321/20 12/03/2020	**Maksim Valeryevich KUDINOV** 1999		On 18/07/2018 the applicant hit a police officer with his car in Zarinsk, Altay Region. The officer's colleagues took him to the Zarinsk police station, where they subjected him to beatings on that day and the day after, when a record of the applicant's arrest was drawn-up and he was officially taken into custody.	Forensic medical examination act no. 4202 of 02/08/2018 by the Altay Regional Forensic Bureau: bruised wounds on the right forearm, bruises on the right shoulder blade and on the right ear.	No later than 02/08/2018 (the date of the forensic medical examination) complaint to the Altay Investigative Committee/Refusal to open a criminal case on 25/10/2018.	The applicant complained of the ill-treatment during his trial at the Altay Regional Court. The court, having questioned the implicated police officers, rejected the complaint as unsubstantiated/Upheld on 24/09/2019 by Russia Supreme Court.	On 19/06/2019 the Altay Regional Court convicted the applicant of an attempt on the life of a law enforcement officer and sentenced him to seventeen years' imprisonment / On 24/09/2019 the Supreme Court of Russia upheld the conviction.		26,000
8.	32997/20 13/07/2020	**Irina Aleksandrovna VEDERNIKOVA** 1965	Sadovskaya Olga Aleksandrovna Nizhniy Novgorod	On 09/12/2016 the applicant was subjected to handcuffing and beatings on various parts of the body during an administrative arrest.	Forensic medical report no. 5066 of 12/12/2016 by the Kirov Forensic Bureau: bruises to the right buttock, right thigh, right knee (one on each), right (two) and left (one) shoulders, right and left forearms (one on each), chest (one); abrasions to the right hand (two); soft	On 10/12/2016 complaint to the Kirov Police Department/the complaint transferred to the Leninskiy Investigative Department in Kirov/ Refusal to open a criminal case of 20/01/2017, overruled by the investigator's	On 18/10/2019 the Leninskiy District Court in Kirov upheld the termination of 05/04/2019 / On 12/12/2019 the decision was upheld by the Kirov Regional Court.	On 10/12/2016 the Leninskiy District Court in Kirov fined the applicant for petty hooliganism.		26,000

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					tissue contusions on the back of the head, left and right elbow joints, left and right wrist joints. Forensic medical report no. 59 of 19/03/2019 by the Kirov Forensic Bureau: several injuries as described in report no. 5066 of 12/12/2016 could have been inflicted both by hard blunt objects, e.g. from kicks, and from repeated falls from one's own height.	superiors/Criminal case opened on 22/02/2018/on 23/04/2018 and 26/11/2018 the case was closed for the lack of corpus delicti, overruled by investigator's superiors. Latest decision to close the case was taken on 05/04/2019 as the use of force by police officers was justified and proportionate during the administrative arrest.				
9.	34695/20 07/08/2020	**Andrey Vladimirovich DVORTSOV** 1971	Vanslova Yekaterina Nizhniy Novgorod	On 09/08/2016 the applicant had a scuffle with two other persons in a street in the Druzhniy village (Kstovo town, Nizhniy Novgorod Region), when he was approached by three police officers. The applicant tried to abscond but was caught; he	Medical certificate of 10/08/216 issued by the emergency department of outpatient hospital no. 50 of the Priokskiy District of Nizhniy Novgorod: closed craniocerebral trauma, concussion, facial haematomas and multiple soft tissue	On 12/08/2016 complaint to the Nizhniy Novgorod Prosecutor's office / Between 27/09/2016 and 08/02/2018 six refusals to open a criminal case: all overruled except for the last one. According to the	The applicant's appeals contesting the refusals to open a criminal case, in view of new evidence – the video-recordings of the incident obtained after 08/02/2018 / On 22/08/2019 and 04/12/2019 appeals dismissed by the	On 07/12/2017 the Kstovo town Court convicted the applicant of the use of force against a representative of authority.		26,000

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				stabbed officer K. in the left palm. Then the officers handcuffed him, pushed him to the ground and beat him unconscious. Then they took the applicant to the emergency unit of the outpatient hospital no. 50 in the Priokskiy District in Nizhniy Novgorod. On 16/08/2016 a criminal case was opened against him for the use of violence against a representative of authority.	bruises on the face and left thigh. Expert report no. 1034-PL of 11/08/2016 by the Nizhniy Novgorod Regional Forensic Bureau: bruises on the face, left ear, shoulders, belly, left forearm, back, left leg. Expert report no. 737 of 13/09/2016 issued by the same Forensic Bureau: the applicant's injuries described in the previous forensic report could not have been caused by a single fall. Additional expert report no. 788 issued by the same Forensic Bureau: the applicant's injuries could have been caused by multiple falls and by the police officers' actions during the applicant's apprehension. Expert report no. 289 of 18/09/2017 issued by the	investigators, the use of force against the applicant was justified and proportionate as he had stabbed officer K.	Kstovo Town Court / last decision upheld on 17/02/2020 by the Nizhniy Novgorod Regional Court.			

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					Independent Forensic Bureau: the applicant's injuries could neither have been caused by falls nor in the circumstances described by the police officers. Witnesses' (neighbours') statements and a video recording of the applicant's beatings by the police officers.					
10.	40200/20 11/08/2020	**Konstantin Yuryevich PELEVIN** 1981	Yankina Mariya Vyacheslavovna Novokuznetsk	On 23/10/2017 the applicant was taken by two police officers to the Mezhdurechensk police department in the Kemerovo Region on suspicion of murdering his wife. During the arrest and at the police station the officers punched, kicked and pistol-whipped him to make him confess to the crime. On the same date the officers reported to their superiors that the use	Forensic expert report no. 1080 of 26/10/2017 by the Novokuznetsk Forensic Bureau: injuries and bruises on the scrotum, thorax, back, arms and legs, caused within 3-5 days prior to the examination, by at least 11 traumatic impacts. Examination by a neurologist of 09/11/2017 (mentioned in the above forensic report): closed cranio-	On 26/10/2017 complaint to the forensic expert during the examination and on 01/12/2017 to the investigator of the criminal case opened against the applicant/ On 22/12/2017 and 26/04/2019 refusals to open a criminal case as the use of force was justified / No appeal.	Complaint about ill-treatment raised during the trial.	The applicant complained of the ill-treatment during the trial. The court heard the two police officers who stated that the use of force had been necessitated by the applicant's resistance. On 29/05/2019 the Kemerovo Regional Court convicted the applicant of murder. It dismissed his allegations of		26,000

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				of force against the applicant was due to his actively resisting the arrest. On 01/12/2017 in the presence of the lawyer of his own choosing the applicant complained about the ill-treatment by the police officers.	cerebral trauma of 23/10/2017.			ill-treatment as unsubstantiated/ On 26/12/2019 the Supreme Court of Russia upheld the conviction. The applicant obtained a copy of the decision on 18/03/2020.		

[1] Plus any tax that may be chargeable to the applicants.